

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
CONROY D. BLAKE,

SUMMONS

Plaintiff,

Plaintiffs designate
QUEENS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. GREG LEVINE
(Tax Reg. 950744),The basis of venue
is where the Tort
arose.

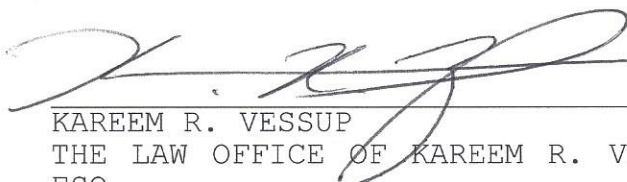
Defendants.

The Tort Arose in:
QUEENS COUNTY, NEW
YORK

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
AUGUST 21, 2013KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.Attorneys for Plaintiff
CONROY D. BLAKE
89-31 161st Street, Suite 705
Jamaica, New York 11432TO: Corporation Counsel of
The City of New York
100 Church Street
New York, NY 10007P.O. Greg Levine (Tax Reg.
950744)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
CONROY D. BLAKE,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, P.O. GREG LEVINE
(Tax Reg. 950744),

Defendants.
-----X

Plaintiff **CONROY D. BLAKE**, by his attorney THE LAW OFFICE OF
KAREEM R. VESSUP ESQ., complaining of the Defendants,
respectfully allege upon information and belief, as follows:

1. At all times herein mentioned, the causes of action
herein alleged arose in the County of Queens, City and State of
New York.

2. At all times herein mentioned, Plaintiff **CONROY D.
BLAKE** was, and still is, a resident of the County of Kings, City
and State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF
NEW YORK** was, and still is, a municipal corporation duly organized
and existing by virtue of the laws of the State of New York.

4. Upon information and belief, at all times mentioned,
Defendants **P.O. GREG LEVINE (TAX REG. 950744)** was and is a police
officer of the Defendant **THE CITY OF NEW YORK**, and at all times
herein was acting in such capacity as the agent, servant and
employee of the Defendant, **THE CITY OF NEW YORK**.

5. On or about August 17, 2012 and within ninety (90) days

after the claim herein arose, the Plaintiff served a Notice of Claim, electronically and sworn to on his behalf, upon the Defendant **THE CITY OF NEW YORK**, by delivering a copy thereof electronically through a system established by the NYC Comptroller's Office for the receipt of Notices of Claims against **THE CITY OF NEW YORK**, which Notice of Claim advised the Defendant **THE CITY OF NEW YORK**, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

6. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the cause of action herein alleged accrued.

7. The Plaintiff has complied with the request of the municipal Defendant for an oral examination pursuant to Section 50h of the General Municipal Law in that a 50h hearing was held on February 7, 2013.

8. That on or about May 23, 2012 at approximately 10:40pm at or near the intersection of Baisley Boulevard and Merril Street in Queens, NY Defendant **P.O. GREG LEVINE (Tax Reg. 950744)** arrested Plaintiff **CONROY D. BLAKE**.

9. Thereafter Plaintiff was brought to the NYPD 113th Precinct followed by Central Booking then was charged and prosecuted in Queens County Criminal Court under Docket #

2012QN028631 for Criminal Possession of a Forged Instrument in the Second Degree, a crime that Plaintiff was innocent of.

10. Said prosecution continued until on or about August 28, 2012 when the criminal prosecution under Docket # 2012QN028631 ended with a dismissal.

AS AND FOR A FIRST CAUSE OF ACTION

11. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "10" with full force and effect as though set forth at length herein.

12. That on May 23, 2012 at approximately 10:40pm at or about the intersection of Baisley Boulevard and Merrill Street in Queens, NY the defendants jointly and severally in their capacity as police officers, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff **CONROY D. BLAKE**, restrained him and interfered with his liberty and took him into custody without authority to the 113th Precinct in Queens County and there charged him with a violation of the New York Penal Law under Criminal Court Docket #2012QN028631.

13. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance.

14. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise

privileged by law and at all times Plaintiff was aware of his confinement.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "14" with full force and effect as though set forth at length herein.

16. That on May 23, 2012 at approximately 10:40pm at or about the intersection of Baisley Boulevard and Merrill Street in Queens, NY the defendants jointly and severally in their capacity as police officers, placed Plaintiff **CONROY D. BLAKE** in imminent fear of a harmful or offensive physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the plaintiff.

17. All of the above actions placed the Plaintiff in imminent fear of physical contact and at no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

18. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "17" with full force and effect as though set forth at length herein.

19. That on May 23, 2012 at approximately 10:40pm at or about the intersection of Baisley Boulevard and Merrill Street in

Queens, NY the defendants jointly and severally in their capacity as police officers, did commit a battery upon Plaintiff **CONROY D. BLAKE** in that they subjected him to a harmful or offensive touching.

20. Defendants did not have legal cause to touch the Plaintiff in the manner in which they did. Plaintiff did not consent to the aforementioned contact nor was it privileged by law.

21. Said contact caused the Plaintiff damage and injury.

AS AND FOR A FOURTH CAUSE OF ACTION

22. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "21" with full force and effect as though set forth at length herein.

23. That on May 23, 2012 Plaintiff was arrested and from that time until the end of the criminal prosecution on or about August 28, 2012, Defendant **P.O. GREG LEVINE (TAX REG. 950744)** deliberately and maliciously prosecuted Plaintiff **CONROY D. BLAKE**, an innocent man without any probable cause whatsoever, by filing or causing a criminal complaint to be filed in the Criminal Court of the City of New York, Queens County, for the purpose of falsely accusing the plaintiff of Criminal Possession of a Forged Instrument in the Second Degree.

24. The Defendants **P.O. GREG LEVINE (TAX REG. 950744)**, failed to take reasonable steps to stop the prosecution of the

Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the Queens County District Attorney's office to induce prosecution of the Plaintiff.

25. The commencement of these criminal proceedings under Docket No. 2012QN028631 was malicious, began in malice and without probable cause, so that the proceedings could succeed by the Defendants.

26. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty as a result of the unjust prosecution and suffered monetary loss in the form of legal fees to defend himself.

AS AND FOR A FIFTH CAUSE OF ACTION

27. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "26" with full force and effect as though set forth at length herein.

28. Defendants **P.O. GREG LEVINE (TAX REG. 950744)** was at all times relevant, a duly appointed and acting officer of the New York City Police Department.

29. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York and/or City of New York.

30. Plaintiff **CONROY D. BLAKE** brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

31. That on May 23, 2012 at approximately 10:40pm at or about the intersection of Baisley Boulevard and Merrill Street in Queens, NY the defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **CONROY D. BLAKE** in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff. The Plaintiff did not consent to this illegal touching nor was this touching privileged by law.

32. That on May 23, 2012 at approximately 10:40pm at or about the intersection of Baisley Boulevard and Merrill Street in Queens, NY the defendants jointly and severally in their capacity as police officers did place Plaintiff **CONROY D. BLAKE** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and/or other objects which they used to physically seize, strike and/or restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

33. That on May 23, 2012 at approximately 10:40pm at or near the intersection of Baisley Boulevard and Merrill Street in Queens, NY, the Defendants, jointly and severally without any

warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and interfered with his liberty and then took him into custody to the 113th Precinct in Queens County and there charged him with the crimes on Docket No. 2012QN028631. The Plaintiff was thereafter held in custody for more than 24 hours before he was arraigned and released on his own recognizance. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

34. That beginning on or about May 23, 2012 and continuing until the end of the aforementioned criminal prosecution on or about August 28, 2012 the Defendants, armed police, while effectuating the seizure of the Plaintiff **CONROY D. BLAKE**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the Defendants possessing probable cause to do so and without a reasonable suspicion of probable cause. Plaintiff was kept in custody by defendants for more than 24 hours until he was arraigned and released on his own recognizance.

35. The above actions of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to his person;
- b. Freedom from battery to his person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from malicious prosecution.

36. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights afforded individuals by the Fourth and Fourteenth Amendments to the United States Constitution.

37. The direct and proximate results of the Defendants' acts are that the plaintiff was forced to endure pain and suffering, all to his detriment. He has suffered severe and permanent injuries of a psychological nature. He has also sustained monetary damages including but not limited to legal fees in connection with his criminal defense.

AS AND FOR A SIXTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "37" with full force and effect as though set forth at length herein.

39. Defendant **THE CITY OF NEW YORK** has grossly failed to

train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only make an arrest based on probable cause

40. Defendant **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest or search warrant, said police officers of **THE CITY OF NEW YORK** are not to arrest individuals such as the Plaintiff here where probable cause is lacking.

41. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, that Probable Cause must be present before an individual such as Plaintiff herein can be arrested.

42. The foregoing acts, omissions and systemic failures are customs and policies of **THE CITY OF NEW YORK** which caused the police officer to falsely arrest, maliciously prosecute, illegally seize and search the Plaintiff, commit an assault/battery upon his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

43. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "42" as if set forth at length herein.

44. Defendant **THE CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendant knew or should have known of his bad disposition or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning his bad disposition and the fact that this officer was not suitable to be hired and employed by **THE CITY OF NEW YORK** and that due to their lack of training, this officer should have had adequate supervision so that he would not arrest innocent individuals, like Plaintiff herein.

AS AND FOR AN EIGHTH CAUSE OF ACTION

45. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in paragraphs "1" through "42" as if set forth at length herein.

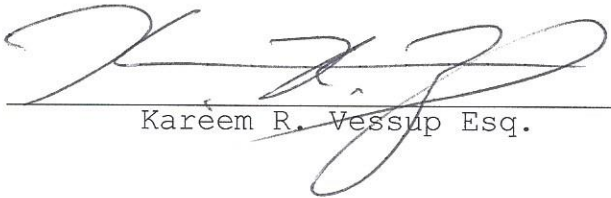
46. That on May 23, 2012 Defendants jointly and severally in their capacity as police officers published a defamatory statement regarding Plaintiff **CONROY D. BLAKE** in that Defendant P.O. GREG LEVINE (TAX REG. 950744) communicated to the Queens District Attorney's Office a sworn statement attesting that "on or about May 23, 2012 at about 10:40pm at the NW intersection of

Baisley Boulevard and Merrill Street, County of Queens, State of New York...[Plaintiff] produced a fraudulent Jamaican driver's license."

47. Said statement was defamatory in that it was false and exposed Plaintiff to public hatred, contempt, ridicule and/or disgrace. Defendants publishing of said statement was grossly irresponsible in manner and purpose.

48. As a result of the Defendants conduct Plaintiff suffered damages including, but not limited to, personal humiliation, mental anguish and suffering, damage to his reputation, damage to his standing in the community and financial loss.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in an amount that exceeds the jurisdictional limit of all lower courts, together with punitive damages, attorney's fees and costs for bringing this case.



Kareem R. Vessup Esq.

VERIFICATION

Kareem R. Vessup, affirms under penalty of perjury:

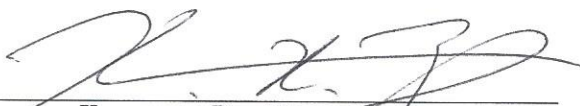
That affirmant is the attorney for the plaintiff **CONROY D. BLAKE** in the action within; that affirmant has read the foregoing:

SUMMONS AND COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes it to be true and the reason that this verification is not made by Plaintiff instead of affirmant is that Plaintiff is not presently in the county where your affirmant maintains his law office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiff.

DATED: JAMAICA, NEW YORK
AUGUST 21, 2013



Kareem R. Vessup Esq.